

Topic list: Consultation

Introduction

- Introduction of the lawyer.
- Role of the lawyer.
- Explanation of the right to legal assistance (and financing).
- Waiving the right.
- Confidentiality.
- Right to an interpreter and the process, if applicable.
- Right to information.
- Right to have a third person (and consulate if applicable) notified.
- Contact with other persons.
- Assessing fitness to be interviewed.
- Information on receiving medical care.
- Identifying and addressing client's immediate worries and specific needs.
- Explanation of the procedures concerning police detention.
- Possibilities to challenge the legality of arrest / police detention.
- Right of legal assistance during the interrogation.
- Objective of the interrogation.

Advice

- Gathering background information:
 - Personal details.
 - Personal circumstances: family, accommodation, employment, medical treatment.
 - Previous contact with the police.
 - Previous convictions, prison and probation.
 - Involvement with social services.
- Simple legal explanation of the offense.
- Obtaining client's version of the events.
- Information about the actual or potential evidence (disclosed by the police/likely to exist/likely to be obtained).
- Client's response to actual or potential evidence.
- Multiple suspects and conflicts of interest.
- Presenting the options and check that client understands the options.
- Obtaining and responding to client's preferences.
- Respective roles in the interview:
 - Lawyer's role in the interview.
 - Client's role in the interview.
- The interview procedure, set-up and stages.
- Advice on how client should handle the interview when she/he decided to remain silent.
- Advice on how client should handle the interview when she/he decided to (partly) respond to questions.
- Advice on how and when to seek lawyer's advice during the interview (including in private by asking for a pause in the interview).

- Tactics used by police to pressure client to speak and how to react to them (if relevant).
- Advice on other police investigative procedures (e.g. identification, searches, taking pictures) and the right of access to a lawyer in those situations.
- Reading and checking the written record of the interrogation (if exists in the given country).

Course of events at the police station

- Complaints by client.
- Requests by client.
- Possibilities to review detention.
- Course of events after consultation.



This project is funded by
the European Union's
Justice Programme
(2014-2020)

"This publication was funded by the European Union's Justice Programme (2014-2020). The content of this training material represents only the views of the Netpralat's Project Partners and is their sole responsibility. The European Commission does not accept any responsibility for use that may be made of the information it contains."